SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Civil) No. 215 of 2005 **CNR: SCIN010002152005**

Date of Pronouncement: 09 March, 2018 *Citation: (2018) 5 SCC 1*

CORAM: Hon'ble Dipak Misra, C.J., A.K. Sikri, A.M. Khanwilkar, D.Y. Chandrachud, A

Petitioner / Appellant: Common Cause (A Regd. Society)

- VERSUS -

Respondent / State: Union of India & Another

SUBJECT: RIGHT TO DIE WITH DIGNITY & MEDICAL LAW **AUTHORITY: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

An adult human being having mental capacity has the right to refuse medical treatment of any kind, including withdrawal of life support systems. The right to live with dignity under Article 21 encompasses the right to die with dignity.

STATUTORY PROVISIONS INTERPRETED: Article 21, Article 14, Article 19

FINAL DISPOSITION: PASSIVE EUTHANASIA & ADVANCE DIRECTIVES GUIDELINES FORMULATED

EXECUTIVE SUMMARY:

Constitution Bench recognized the legal validity of Advance Medical Directives ('Living Will') and declared that the fundamental right to life under Article 21 includes the right to die with dignity through passive euthanasia.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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